

**IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF IOWA
CENTRAL DIVISION**

Benita Villarreal

Plaintiff,

v.

**Carvana LLC, a/k/a Carvana, Carvana
Logistics, LLC, Carvana FAC, LLC; and
Christopher G. Linnens;**

Defendants.

**COMPLAINT AND JURY
DEMAND**

COME NOW the Plaintiff, Benita Villarreal, and for her cause of action states as follows:

FACTUAL BACKGROUND

1. At all times relevant to this claim, Plaintiff Benita Villarreal has been a resident of Finney County, KS.

2. Defendant Carvana LLC (doing business as and hereinafter referred to as “Carvana”) is an Arizona business engaged in online car sales that also operates as an interstate motor carrier with principle place of business in Tempe, AZ, operating under United States Department of Transportation No. 2386128; it also has several subsidiaries or related entities who may be parties of interest, including Carvana FAC, LLC and Carvana Logistics, LLC (operating under United States Department of Transportation No. 3713276).

3. At all relevant times to this claim, by information and belief, Defendant Christopher Linnens has been a resident of Wichita, KS.

4. The crash that caused the injuries giving rise to this claim happened in Decatur County, IA, on December 30, 2020.

5. On December 30, 2020, Defendant Linnens operated a semi-tractor trailer, VINs 1FVHG3DV0LHLF3804 (tractor) and SE0AA1645KG210007 (trailer), owned by Defendant Carvana.

6. On December 30, 2020, Defendant Linnens operated a semi-tractor trailer, VINs VIN 1FVHG3DV0LHLF3804 (tractor) and SE0AA1645KG210007 (trailer), with the permission of Defendant Carvana.

7. On December 30, 2020, Defendant Linnens operated a semi-tractor trailer, VINs VIN 1FVHG3DV0LHLF3804 (tractor) and SE0AA1645KG210007 (trailer), under the operating authority/livery of Defendant Carvana.

8. On December 30, 2020, Defendant Linnens operated the Carvana semi-tractor trailer in the course and scope of his duties on behalf of Defendant Carvana as an employee or agent of Defendant Carvana.

9. On December 30, 2020, Defendant Linnens operated the Carvana semi-tractor trailer in furtherance of Defendant Carvana's business of over the road hauling.

10. On December 30, 2020, Defendant Linnens drove the Carvana semi-tractor trailer in such a way that caused a crash between his semi and the vehicle driven by Benita Villarreal by unlawfully rear-ending Villarreal's SUV at highway speeds.

11. As a result of his actions on December 30, 2020, Defendant Linnens was given a citation for Failure to Stop in the Assured Clear Distance Ahead in violation of Iowa Code § 321.285.

12. Jurisdiction in this Court is appropriate based on diversity of parties and damages to the Plaintiff well in excess of \$75,000. 28 U.S.C. § 1332(a) (West 2022).

13. Venue is appropriate in this court based on location of the crash giving rise to this action. 28 U.S.C. § 1391(b)(2) (West 2022).

COUNT I

PLAINTIFF BENITA VILLARREAL's NEGLIGENCE CLAIM AGAINST DEFENDANT CHRISTOPHER LINNENS

14. Defendant Linnen's negligence caused the crash between his semi-tractor trailer and Benita Villarreal's SUV.

15. Defendant Linnens was negligent in at least one or more of the following ways:

- a. Failure to have control of the semi he was driving.
- b. Failure to properly use lanes in violation of Iowa law.
- c. Failure to keep a proper lookout.
- d. Failure to stop in a clear and assured distance ahead.
- e. Operating his semi in violation of the Federal Motor Carrier Safety Regulations, Iowa and United States Department of Transportation guidelines, and Iowa law.

16. As a result of Defendant Linnen's negligence, Benita Villarreal has suffered damage including physical and emotional pain and suffering and loss of function. These injuries are permanent.

WHEREFORE Plaintiff Benita Villarreal prays for judgment against Defendant Christopher Linnens for reasonable compensation for her damages, along with interest and costs of this action.

COUNT II

PLAINTIFF BENITA VILLARREAL's NEGLIGENCE CLAIM AGAINST DEFENDANT CARVANA CO.

17. Under Iowa law, as the motor carrier and vehicle owner, Defendant Carvana is vicariously liable for any and all damage caused by the negligent driver as outlined in Count I, based on Iowa Code § 321.493, the Federal Motor Carrier Safety Regulations, and the legal theory of *respondeat superior*.

18. Defendant Carvana is separately and additionally liable for its negligent failures in at least one or more of the following ways:

- a. Failure to maintain and ensure proper training for its driver, Defendant Linnens.
- b. Failure to maintain and ensure proper driving skill for its driver, Defendant Linnens.

- c. Failure to oversee and ensure its driver, Defendant Linnens, obeyed all traffic laws, Federal Motor Carrier Safety Regulations, Iowa and United States Department of Transportation guidelines, and Iowa law.
- d. Failure to place only safe drivers and trucks onto Iowa roadways.

19. Because of the negligence of Defendant Carvana, Benita Villarreal suffered damage physical and emotional pain and suffering and loss of function. These injuries are permanent.

WHEREFORE Plaintiff Benita Villarreal prays for judgment against Defendant Carvana, for reasonable compensation for the damages to her together with interest and costs of this action.

**LAWYER, LAWYER, DUTTON, DRAKE &
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/s/ Rob Conklin

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Original filed.

PLAINTIFF DEMANDS TRIAL BY JURY.